

May 19, 2026 and set for hearing on October 9, 2026 in this department.

The application is **denied without prejudice** for lack of proof that the *ex parte* order filed June 10, 2026 advancing hearing on this motion from October 9, 2026 to June 26, 2026 was served on all parties.

Parties are ordered to appear.

The application may be granted at hearing subject to hearing from the Plaintiff.

5. 9:00 AM CASE NUMBER: C23-02087

CASE NAME: JOHN BROSNAN VS. GEICO INDEMNITY COMPANY

*HEARING ON MOTION IN RE: FOR DISMISSAL OF PENDING ACTION WITH PREJUDICE

FILED BY: GARCIA, GINA

TENTATIVE RULING:

Before the Court is a motion by defendant Gina Garcia for judgment of dismissal of the pending action with prejudice. For the reasons set forth, the motion is **granted**.

Background

Plaintiff John Brosnan alleges he was in a car accident in which defendant Gina Garcia struck his vehicle. He asserts a claim for negligence against her arising out of the accident. The complaint also named Geico Indemnity Company as a defendant. Geico filed a demurrer to the complaint which was sustained without leave to amend as reflected in the Court's Minute Order of January 26, 2024. (Kilroy Decl. ¶¶ 5, 6 and Exh. B.)

Brosnan filed his complaint initiating this action on August 23, 2023. The complaint reflects he was represented by counsel Sanford Steven Troy when the action commenced. Plaintiff alleges in the complaint that the accident occurred on August 3, 2021. The complaint on its face shows it was filed more than two years after the accident.

On June 24, 2024, a substitution of counsel was filed by which Plaintiff's counsel substituted out of the case and Brosnan began representing himself. Thereafter, he personally served defendant Garcia, and on October 21, 2024, defendant Garcia filed a demurrer to the complaint based on the statute of limitations. (Kilroy Decl. ¶¶ 7-10.) The demurrer was sustained without leave to amend pursuant to the Court's tentative ruling, adopted on February 21, 2025 as reflected in the Court's minute order of that date. On February 6, 2026, counsel for Garcia served and filed a belated notice of ruling with a copy of the February 21, 2025 minute order. (See Kilroy Decl. ¶¶ 8-11 and Exh. C.)

Garcia moves for entry of a judgment of dismissal under Code of Civil Procedure § 581(f)(1). Brosnan opposes the motion.

Dismissal under Code of Civil Procedure § 581 and Analysis

Code of Civil Procedure § 581(f) provides in relevant part, "The court may dismiss the complaint as to that defendant when: [¶] (1) Except where Section 597 applies, after a demurrer to the complaint is sustained without leave to amend and either party moves for dismissal." (Code Civ. Proc. § 581(f)(1).) The exception stated in that statute does not apply. Code of Civil Procedure § 597 applies where there is a trial of certain special defenses, which did not occur here as the complaint on its face shows it was filed after the two-year statute of limitations for a claim based on negligence had expired.

Plaintiff does not dispute or address the provisions of Code of Civil Procedure § 581(f)(1), which clearly apply here and warrant dismissal of the action with prejudice based on the order sustaining Garcia's demurrer with prejudice. Plaintiff instead raises issues regarding (1) his complaint to the California State Bar regarding his former counsel's alleged wrongful abandonment of him as a client, and (2) a prior complaint he filed against Garcia in this Court, Case No. MSC23-00498 ("Prior Action"), in which Plaintiff, a designated vexatious litigant, was ordered to obtain a prefiling order, and Brosnan concedes he did not obtain within the ten-day time frame stated by the Court in a Minute Order issued April 28, 2023. (Brosnan Opp. ¶¶ 16, 17.) He contends that attorney Troy represented him in the Prior Action and was identified as his counsel in the complaint initiating the Prior Action, and that the determination that he needed to obtain a prefiling order was in error. (Opp. ¶¶ 25-27.)

None of the issues raised in the opposition are properly before the Court on this motion. The only issue the Court can resolve on this motion is whether dismissal the grounds for entry of a judgment of dismissal of the claims against Garcia have been established under Code of Civil Procedure § 581(f)(1), and they undisputedly are satisfied.

Other remedies may be, or may have been, available to address the issues raised in Plaintiff's opposition regarding the Prior Action or the alleged acts or omissions of Plaintiff's former counsel. Indeed, Plaintiff's opposition shows that he has a complaint with the State Bar regarding his former counsel's conduct which appears to have been reopened in June 2025. Those issues, however, are not properly before the Court on the pending motion.